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বাংলাদেশ সুপ্রীমকোর্ট
হাইকোর্ট বিভাগ

আপীল সম্পর্কিত
ফৌজদারী

জেলা -JHALAKATHI

ফৌজদারী কার্যবিধি আইনের ধারার অধীনের রিভিশন
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Md. Sohagh Biswas আবেদনকারী
মাধ্যম Mr. Md. Shaheen Khan, Adv.

বনাম

The State

প্রতিপক্ষ

Mr. Mohammad Taifoor Kabir, DAG with Mr. Md. Lokman Hossain and Mr. Md. Hatem Ali, AAG

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দন্ডদেশ

Present:
Mr. Justice Mamnoon Rahman

আপীল আদালত

তারিখ

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কাগজপত্র বা আদেশের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
01	<u>22.01.2024</u>	In preferring the Criminal Revision under section 439 and read with Section 435 of the Code of Criminal Procedure there had been a delay of 174 days for which the petitioner filed an application under section 5 of the Limitation Act. Considering the facts and circumstances, the delay of 174 days in filing the revision is hereby condoned subject to any just objection raised by the opposite-party at the time of disposal of the rule. Let the realization of fine be stayed. Let the records of the case be called for and a rule be issued calling upon the opposite parties to show cause as to why the judgment and order of conviction and sentence dated 31.05.2023 passed by the learned Sessions Judge, Jhalakathi in Criminal Appeal No. 81 of 2022 allowing the appeal modifyingly and sentencing him to suffer a rigorous	

imprisonment for a period of 01(one) year with fine of Tk. 1000/- in default to suffer simple imprisonment for a period of 07 days and thereby modified the judgment and order of conviction and sentence dated 12-06-2022 passed by learned Judicial Magistrate, 1st Court, Jhalakathi in Rajapur Police Station Case No. 12 dated 24-08-2019 corresponding to G.R Case No. 163 of 2019 (Raja:) convicting the convict petitioner under Table 10(Ka) of Section 36(1) of the Madok Drabbya Niyatron Ain, 2018 and sentencing him to suffer a rigorous imprisonment for a period of 02 years with a fine of Tk. 2,000/- in default to suffer simple imprisonment for a period of 15 days more, should not be set aside, and/or pass such other or further order or orders as to this Court may seem fit and proper.

The Rule is made returnable within 4(four) weeks from date.

Pending hearing of the Rule, let the accused petitioner, namely Md. Sohagh Biswas, son of Abdul Khaleque Biswas be enlarged on ad-interim bail for a period of 1(one) year from date, subject to furnishing bail bond to the satisfaction of the learned Chief Judicial Magistrate, Jhalakathi.

The office is directed to serve notices upon the opposite party by usual course as well as by registered post with acknowledgement receipt.

The petitioner is directed to put in the requisites forthwith.

(Mamnoon Rahman, J)

